

STATE OF NEW YORK

4066--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 31, 2025

Introduced by M. of A. CUNNINGHAM, SHIMSKY, LEVENBERG, MAHER, BURROUGHS
-- read once and referred to the Committee on Transportation -- recom-
mitted to the Committee on Transportation in accordance with Assembly
Rule 3, sec. 2 -- committee discharged, bill amended, ordered
reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to the accept-
ance of electronic signatures on form MV-82, application for
registration/title

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 title 11-A to read as follows:

3 TITLE 11-A
4 ELECTRONIC SIGNATURES
5 ARTICLE 48-D
6 ELECTRONIC SIGNATURES

7 Section 2500. Definitions.

8 2501. Acceptance of electronic signatures.

9 2502. Requirements and limitations.

10 2503. Utilization.

11 2504. Conflict.

12 § 2500. Definitions. For the purposes of this article:

13 (a) "Document" means form MV-82, application for registration/title,
14 as prescribed by the commissioner, and shall not include any other form,
15 certificate, record, or instrument required under this chapter.

16 (b) "Electronic signature" means an electronic sound, symbol, or proc-
17 ess, attached to or logically associated with form MV-82 (application
18 for registration/title) and executed or adopted by a person with the
19 intent to sign, agree, or otherwise acknowledge the information and
20 facts to be accurate and correct.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03600-03-6

1 (c) "Electronic" means relating to technology having electrical,
2 digital, magnetic, wireless, optical, electromagnetic, or similar capa-
3 bilities as used solely in connection with form MV-82 (application for
4 registration/title).

5 § 2501. Acceptance of electronic signatures. (a) The commissioner may
6 accept electronic signatures on form MV-82.

7 (b) An electronic signature affixed to form MV-82, when permitted by
8 the commissioner, shall have the same force and legal effect as a hand-
9 written "wet ink" signature.

10 § 2502. Requirements and limitations. (a) The commissioner:

11 (1) may require that form MV-82 containing an electronic signature to
12 include an indication that the signature is electronic;

13 (2) may establish procedures for the acceptance and processing of form
14 MV-82 executed with an electronic signature, including procedures for
15 invalidating any previously submitted paper version of such form when
16 replaced by an electronic submission;

17 (3) may not refuse to accept form MV-82 executed with an electronic
18 signature solely because such signature is electronic, provided the
19 electronic signature complies with standards established by the commis-
20 sioner;

21 (4) may establish standards for electronic signature processes and
22 vendors used for form MV-82, including security, authentication, and
23 fraud prevention requirements;

24 (5) shall not require a form MV-82 executed with an electronic signa-
25 ture to be converted to physical format by printing for any purpose,
26 except when submission by physical means is required because the commis-
27 sioner does not have an electronic process or system available to accept
28 such form MV-82, or where an applicant does not have access to the elec-
29 tronic process or system;

30 (6) shall not impose any additional requirement upon an electronic
31 signature on form MV-82 except as authorized by this section; and

32 (7) may require reasonable authentication or verification measures for
33 electronic signatures on form MV-82, including such methods as deter-
34 mined necessary by the commissioner to ensure integrity and prevent
35 fraud.

36 (b) The commissioner may establish security, verification, and record-
37 keeping standards for electronic signatures on form MV-82, including
38 measures necessary to ensure the integrity of the submission and prevent
39 fraud.

40 (c) This section shall not be construed to require, limit, prohibit,
41 or otherwise hinder the commissioner from providing electronic services
42 or systems for form MV-82, including electronic signature capturing or
43 identity verification related solely to such form.

44 § 2503. Utilization. Electronic signatures used on form MV-82 shall be
45 used solely for the purpose of executing such form as indicated by the
46 signer and shall be associated with the electronic submission of such
47 form in a manner sufficient to verify authenticity and prevent unauthor-
48 ized alteration.

49 § 2504. Conflict. In the event of a conflict between this section and
50 any other provision of this chapter or article three of the state tech-
51 nology law, this section shall apply solely with respect to form MV-82.

52 § 2. This act shall take effect on the one hundred twentieth day after
53 it shall have become a law.